

102	ALONZO vs. WL HOMES LLC 2022-01298485	Motion to Be Relieved as Counsel of Record Attorneys Darren M. Ebner and Lisette M. Baptiste of Springel & Fink, LLP move to be relieved as counsel of record for Cross-Complainant and Cross-Defendant FCM Fireplaces, Inc. aka FCM Fireplaces, LLC ("FCM"). The Motion To Be Relieved As Counsel is GRANTED. IT IS ORDERED THAT Notice of Entry of Order and Proof of Service must be filed by Counsel. Counsel will remain counsel of record for FCM until the Proof of Service of the signed Order is filed. The court hereby sets an Order to Show Cause why FCM's answer should not be stricken and/or its Cross-Complaint dismissed due to FCM being a corporate entity but not having an attorney of record. <u>CLD Construction, Inc. v. City of San Ramon</u> (2004) 120 Cal. App. 4th 1141, 1150. The OSC hearing is set for August 14, 2025 at 9:30AM., when the next Status Conference is set. FCM therefore has roughly four months to obtain new counsel. Counsel is ordered to give notice of the ruling.
103	BARRAZA vs. WL HOMES LLC 2023-01304774	Motion to Be Relieved as Counsel of Record Attorneys Darren M. Ebner and Lisette M. Baptiste of Springel & Fink, LLP move to be relieved as counsel of record for Cross-Complainant and Cross-Defendant FCM Fireplaces, Inc. aka FCM Fireplaces, LLC ("FCM"). The Motion To Be Relieved As Counsel is GRANTED. IT IS ORDERED THAT Notice of Entry of Order and Proof of Service must be filed by Counsel. Counsel will remain counsel of record for FCM until the Proof of Service of the signed Order is filed. The court hereby sets an Order to Show Cause why FCM's answer should not be stricken and/or its Cross-Complaint dismissed due to FCM being a corporate entity but not having an attorney of record. <u>CLD Construction, Inc. v. City of San Ramon</u> (2004) 120 Cal. App. 4th 1141, 1150. The OSC hearing is set for August 14, 2025 at 9:30AM., when the next Status Conference is set. FCM therefore has roughly four months to obtain new counsel.

		Counsel is ordered to give notice of the ruling.
104	Alvarez vs. Complete Automotive Reconditioning Specialists, LLC 2024-01432439	Motion to Compel Arbitration Defendant Complete Automotive Reconditioning Specialists LLC’s Motion to Compel Arbitration and Stay Proceedings is DENIED. Defendant’s Request for Judicial Notice is denied in its entirety on the ground of relevance. Plaintiff Andres Alvarez’s Request for Judicial Notice is denied in its entirety on the ground of relevance. The Court rules as follows on Plaintiff’s evidentiary objections to the Declarations of Christina Reynoso and Carmine Pearl: 1. Sustain – lacks foundation, calls for legal conclusion 2. Overrule 3. Overrule 4. Overrule 5. Overrule On January 22, 2025, Defendant filed the current Motion to Compel Arbitration and Stay of Proceedings. <u>Existence of Agreement to Arbitrate</u> Defendant contends that Plaintiff’s individual wage-and-hour and PAGA claims must be compelled to binding arbitration pursuant to an arbitration agreement Plaintiff purportedly electronically signed on or about June 20, 2023, as part of his employment onboarding process. Plaintiff opposes the Motion primarily on the ground that Defendant has failed to establish the existence of a valid agreement to arbitrate. For the reasons explained below, the Court agrees. In resolving petitions to compel arbitration, courts must first determine whether the agreement exists—i.e., whether the parties actually entered into a valid contract agreeing to arbitrate certain disputes—and whether it is enforceable.